



TriageCounsel

Contracts aren't collections of independent clauses.

Clause-by-clause review checks each provision against a standard and moves on. It doesn't check whether the provisions agree with each other. A liability cap and its indemnification carve-out can each look acceptable — or each get flagged — without anyone checking whether they're consistent. A termination right for non-payment can conflict with a dispute-withholding clause three pages away. Most contract-review tools, including most AI-based ones, never ask that question, because they evaluate each clause in a vacuum and never compare their own conclusions.

Policy before prompting.

Evidence before assertion.

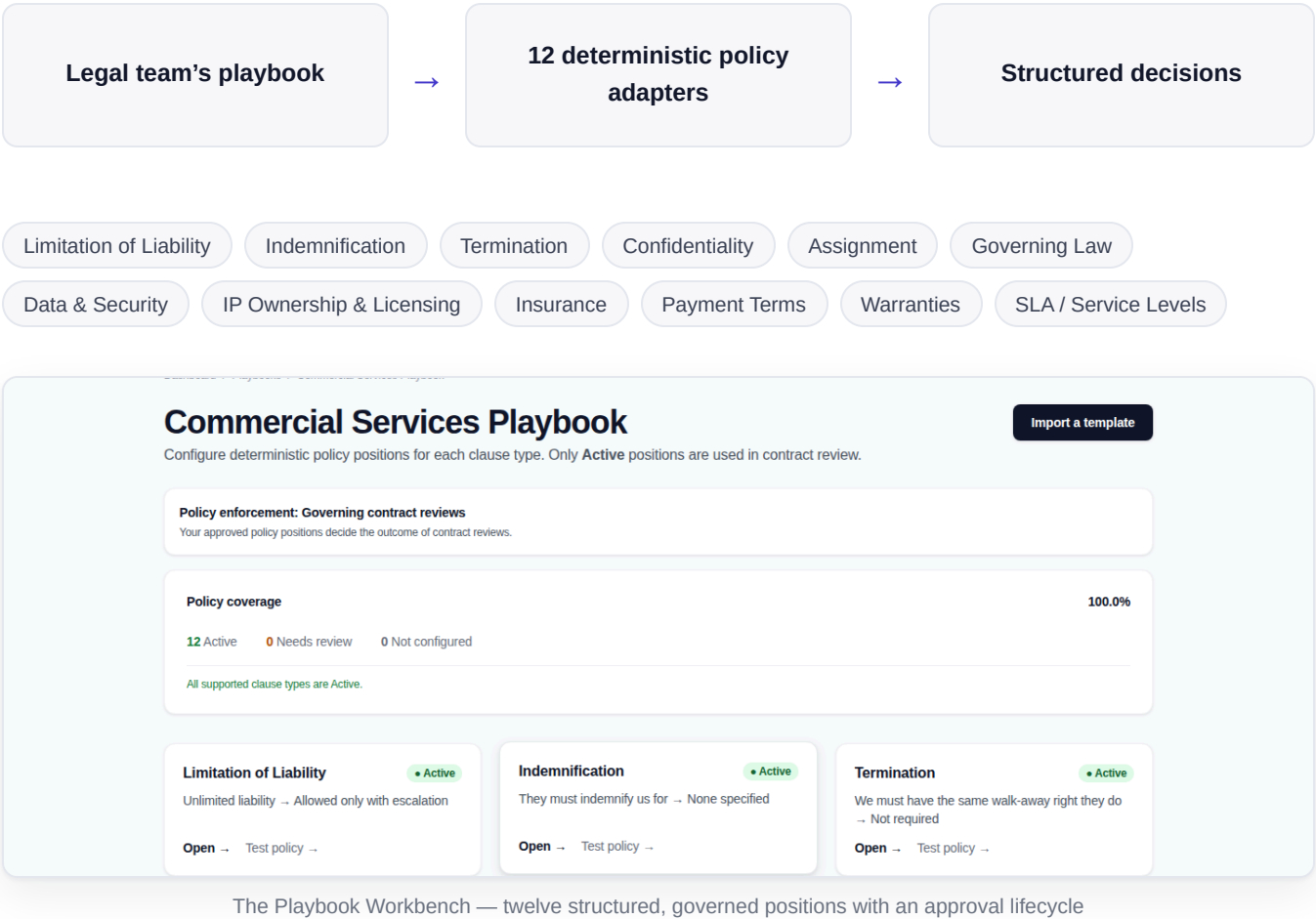
Determinism where the organization has already decided.

Judgment where it hasn't.



An approved playbook, not a prompt.

Legal teams encode their actual contracting positions — preferred terms, acceptable ranges, negotiation thresholds, prohibited positions, fallback language, escalation rules, and which side of the transaction each position applies to. Positions move through a governed lifecycle: Draft → Needs Review → Approved → Active. Editing an active position creates a new revision; it never silently changes the policy a past review was decided against.



Two flagged clauses. One connected reason.

On a real SEC-filed Master Services Agreement, the Limitation of Liability adapter and the Indemnification adapter each independently flag their clause for redline. Reviewed separately, that's where it would stop — two items on a list, no connection between them. TriageCounsel's Interaction Engine checks whether the two decisions are consistent with each other, and finds they aren't: the liability clause treats gross-negligence claims ambiguously, while the indemnification clause exposes the Provider without a matching carve-out for that category. Neither clause's individual result resolves the question — the two have to be read together.

Cross-policy interaction · Limitation of Liability × Indemnification

Hyperscale_Data_Alliance_Cloud_Services_MSA_ex10_1.txt CRITICAL RISK In Review · 1 of 82 resolved

Full Report & Audit Trail ? 81 item(s) need a decision Finalize Review

NEGOTIATE **Payment Terms** Trigger: invoice — policy allows up to See configured policy Commercial Services Playbook — Payment Terms (policy position #4)

ACCEPT **Warranties** No warranty categories established — policy allows up to Meets policy Commercial Services Playbook — Warranties (policy position #12)

REQUIRES REVIEW **SLA** Could not be reliably established — policy allows up to N/A Commercial Services Playbook — SLA / Service Levels (policy position #5)

General findings (not anchored to a specific passage)

LIABILITY/INDEMNIFICATION: ambiguous shared-category treatment — REQUIRES REVIEW

Document

EX-10.1.2 ex10_1.htm EXHIBIT 10.1 Exhibit 10.1 Confidential portions of this exhibit have been omitted because they are both (i) not material and (ii) are the type of information that the registrant treats as private or confidential. The redacted terms have been marked at the appropriate place with "[***]." MASTER SERVICES AGREEMENT ALLIANCE CLOUD SERVICES, LLC , AS PROVIDER AND [***] , AS CUSTOMER Property: 415 E. Prairie-Ronde Street Dowagiac, Michigan Dated: June 23, 2026 TABLE OF CONTENTS ARTICLE 1 SERVICES, LICENSE, TERM, SERVICE CHARGES 3 ARTICLE 2 USE AND OCCUPANCY; CUSTOMER'S EQUIPMENT 5 ARTICLE 3 ALTERATIONS 6 ARTICLE 4 CONDITION OF THE SERVICE AREA; INITIAL WORK 7 ARTICLE 5 REPAIRS AND MAINTENANCE; FLOOR LOAD 8 ARTICLE 6 UTILITY EXPENSES 9 ARTICLE 7 LEGAL REQUIREMENTS 9 ARTICLE 8 MORTGAGES; SUBORDINATION; ESTOPPEL CERTIFICATES; EQUIPMENT LIENS 10 ARTICLE 9 SERVICES 11 ARTICLE 10 INSURANCE 14 ARTICLE 11 DESTRUCTION OF THE PROPERTY; LOSS OR DAMAGE 15 ARTICLE 12 EMINENT DOMAIN 16 ARTICLE 13 ASSIGNMENT AND SUBLICENSING 16 ARTICLE 14 ACCESS TO SERVICE AREA 20 ARTICLE 15 CERTIFICATE OF OCCUPANCY 20 ARTICLE 16 DEFAULT 21 ARTICLE 17 REMEDIES 22 ARTICLE 18 FEES AND EXPENSES 23 ARTICLE 19 NO REPRESENTATIONS BY

NEEDS REVIEW DEPENDENCY

Liability/Indemnification: ambiguous shared-category treatment — REQUIRES REVIEW
IX_LIABILITY_INDEMNITY_CATEGORY_AMBIGUOUS

Verify

Participating clauses: Limitation of Liability, Indemnification

This interaction depends on Limitation of Liability, which has changed since the interaction was evaluated. **Dismiss**

Acknowledge **Dismiss**

Comment c

Why this decision?

Contract evidence

Interaction rule 4 of 7 (Liability × Indemnification category ambiguity). Verified against a 54-case, 65-assertion adversarial benchmark for this rule set: zero false interactions, zero missed high-risk interactions in that test suite.

Demonstrated using a real, unmodified SEC filing — Alliance Cloud Services, LLC Master Services Agreement, filed as Exhibit 10.1 to Hyperscale Data, Inc.'s Form 8-K, June 2026. No party to the agreement, and neither the SEC nor Hyperscale Data, Inc., endorses or is affiliated with TriageCounsel.

SHOW THE EVIDENCE

Not “trust the AI.” Inspect the decision.

Every material decision carries its own chain: contract language, structured fact, playbook position, decision, required action. TriageCounsel does not ask a language model to decide whether two provisions interact — the interaction is evaluated from structured facts the deterministic policy engines already established, the same facts a lawyer could independently verify by reading the cited section.

Provision A →
established fact

Provision B →
established fact

Approved interaction
policy → deterministic
condition

Result → review /
escalation /
dependency

Hyperscale_Data_Alliance_Cloud_Services_MSA_ex10_1.txt CRITICAL RISK In Review · 1 of 82 resolved

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AVAILABILITY 24 ARTICLE 22 NO WAIVER, NON-LIABILITY 25 ARTICLE 23 WAIVER OF TRIAL BY JURY 25 ARTICLE 24 INABILITY TO PERFORM 25 ARTICLE 25 **BILLS** AND NOTICES 26 ARTICLE 26 RULES AND REGULATIONS 26 ARTICLE 27 BROKER 26 ARTICLE 28 INDEMNITY 26 ARTICLE 29 EXTENSION OPTIONS 27 ARTICLE 30 CUSTOMER'S **TERMINATION** OPTION 27 ARTICLE 31 EXCULPATION; APPROVALS; LEGAL FEES 28 ARTICLE 32 PROVIDER'S DEFAULT, CUSTOMER'S REMEDIES, SELF-HELP 29 ARTICLE 33 MISCELLANEOUS 30 ARTICLE 34 ROFO ON ADDITIONAL POWER **EXHIBITS** EXHIBIT A FLOOR PLAN OF THE SERVICE AREA A-1 EXHIBIT B DEFINITIONS B-1 EXHIBIT C REMAINING FIT OUT WORK NON-RECURRING SERVICE CHARGES C-1 EXHIBIT D REMAINING FIT OUT ITEMS D-1 EXHIBIT E SERVICE LEVEL AGREEMENT E-1 EXHIBIT F CUSTOMER'S INITIAL AUTHORIZED CONTACTS F-1 EXHIBIT G REMOTE HANDS SPECIFICATIONS G-1 EXHIBIT H FORM OF NDA H-1 2 This MASTER SERVICES AGREEMENT (this "Agreement") is made as of June 23, 2026 (the "MSA Date"), between Alliance Cloud Services, LLC, a Delaware limited liability company with an address at 415 E. Prairie-Ronde Street, Dowagiac, Michigan 49047 ("Provider"), and ["*"], a Texas limited liability company with an address at 9665 Chesapeake Drive, Suite 435, San Diego, California 92123 ("Customer"). Each of Provider and Customer are referred to from time-to-time individually as a "party" and collectively as the "parties". AGREEMENT. ALL OF THE CAPITALIZED TERMS USED, BUT NOT DEFINED, IN THIS AGREEMENT SHALL HAVE THE MEANINGS ASCRIBED THERETO IN EXHIBIT B ATTACHED HERETO. ARTICLE 1 SERVICES, LICENSE, TERM, SERVICE CHARGES Section 1.1 Provision of Data Center Services. Provider agrees to provide to Customer, and Customer agrees to receive from Provider, colocation and related data center services that are set forth in this Agreement (each, a "Service" and collectively, the "Services" **70 13**) at the Recurring Service Charges for each Contract Year as set forth in the definition of Recurring Service Charges in Exhibit B. Section 1.2 Grant of License. Provider hereby grants Customer a license to use the Service Area for the Term to commence on the Service Commencement Date and to end on the Fixed Expiration Date (the "License") with respect to each of the following Phases (each, a "Phase" and collectively the "

NEEDS REVIEW DEPENDENCY

Liability/Indemnification: ambiguous shared-category treatment — **REQUIRES REVIEW**

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This interaction depends on Limitation of Liability, which has changed since the interaction was evaluated. Dismiss

Acknowledge Dismiss

Comment c

Why this decision?

Limitation of Liability and/or Indemnification treat the following category ambiguously (carve-out language that could not be reliably classified): gross negligence. Whether these two clauses' positions interact cannot be determined until that ambiguity is resolved.

Contract evidence

Interaction requires attention

the Limitation of Liability provision at

TriageCounsel does not ask an LLM to decide whether the provisions interact. The interaction is evaluated from structured facts already established by the deterministic policy engines.

 TriageCounsel

Product Overview · 4

When the contract changes, dependent conclusions shouldn't silently remain trusted.

A lawyer edits the Limitation of Liability finding mid-negotiation. TriageCounsel does not silently recompute a conclusion against the new free text, and it does not leave the old conclusion marked valid. It tracks which cross-policy interactions depended on that provision and marks exactly those **NEEDS RECONFIRMATION** — with the specific reason.

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Acknowledge **Dismiss**

Comment

Why this decision?

Contract evidence

Changed provision



Dependent interaction
invalidated



Reconfirmation required

- Unrelated decisions remain intact.

What the lawyer actually gets.

PASSED AUTOMATICALLY

Matches the approved position. Doesn't consume review time.

NEGOTIATION REQUIRED

Outside preferred terms, within acceptable range.

CROSS-POLICY CONFLICT

Individually fine or individually flagged — inconsistent together.

HUMAN JUDGMENT REQUIRED

Evidence is ambiguous or insufficient; the system abstains rather than guesses.

Provider (or upon any successor-in-interest after the sale, conveyance, assignment or transfer by

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accrued prior to such sale, conveyance, assignment or transfer. Prior to any such sale, conveyance, assignment or transfer, the **liability of Provider for Provider's obligations under this Agreement** shall be limited to Provider's interest in the Building (and the proceeds of any insurance or condemnation award with respect thereto) and Customer shall not look to any other property or assets of Provider or the property or assets of any of the Exculpated Parties (defined below) in seeking either to enforce Provider's obligations under this Agreement or to satisfy a judgment for Provider's failure to perform such obligations. (b) Notwithstanding anything contained in this Agreement to the contrary, Customer shall look solely to Provider to enforce Provider's **obligations** hereunder and no partner, shareholder, member, manager, director, officer, principal, beneficial owner, employee or agent, directly and indirectly, of Provider (collectively, the "Exculpated Parties") shall be personally liable for the performance of Provider's obligations under this Agreement. Customer shall not seek any damages against any of the Exculpated Parties. (c) Notwithstanding anything elsewhere in this Agreement, except as expressly provided in Article 28, under no circumstances shall either Provider or Customer be liable to the other for any **consequential damages or lost profits**. (d) Whenever in this Agreement it is provided that Provider shall not be liable to Customer, the same shall be deemed and interpreted to mean and include that Provider shall not be liable for its negligence or that of its agents, contractors, licensees, employees, servants or invitees, unless and only to the extent that it is specifically and expressly stated that Provider shall be liable for such negligence. Section 31.2 Arbitration of Reasonableness Matters. (a) Wherever in this Agreement Provider's Approval is required or as to any other Reasonableness Matter, if Provider shall refuse such Approval, Customer in no event shall be entitled to make, nor shall Customer make, any claim, and Customer hereby waives any claim, for money damages (nor shall Customer claim any money damages by way of set-off, counterclaim or defense) based upon any claim or assertion by Customer that Provider unreasonably withheld or unreasonably delayed its Approval in any one instance or for any other Reasonableness Matter. Customer's sole and exclusive remedy as to such a claim or assertion shall be the expedited arbitration procedure set forth in Section 31.2(b). 28 (b) If there is a dispute between Provider and Customer as to: (i) the reasonableness of either party's refusal to grant its Approval to any matter as to which such party has expressly agreed to be

Review Queue 1/82 resolved

7 need attention

3 Prohibited / Must Redline / Escalate 3 Negotiate

1 Needs Review 3 Passed 1 Cross-Policy Interaction

PLAYBOOK EXCEPTIONS

MUST REDLINE Limitation of Liability ✓ Applied (edited)

Counterparty: Limitation-of-liability clause present but no numeric general cap stated

Your playbook: 6x annual fees

→ Redline — Insert the approved cap language

MUST REDLINE Indemnification

Counterparty: Exposure: unspecified; Protection: present

Your playbook: 6x annual fees

→ Contract language: "Provider shall exercise its option under Section 13.2 hereof, Customer shall indemnify, defend and hold harmless Provider against and from any and all losses, liabilities, damages, costs", exposure obligation states no monetary treatment at all. Result: MUST_REDLINE.

MUST REDLINE IP Ownership & Licensing

Counterparty: Exclusivity: exclusive

Your playbook: See configured policy

→ Replace clause — apply the approved fallback IP ownership/license language: policy requires us to own work product/deliverables, but no ownership statement was found in the clause; policy requires a license to use background IP embedded in deliverables, but none was found; policy requires a perpetual license, but the clause provides no stated duration;

Review by exception — the four states above, live, on a real contract

TriageCounsel doesn't try to eliminate judgment — contract negotiation depends on leverage, business priorities, and context that isn't reducible to rules. It automates the decisions the legal team has already made, detects when those decisions interact, preserves the evidence behind each one, and routes genuine judgment calls to a lawyer instead of manufacturing certainty.

TRY TO BREAK IT

Give us a contract and the playbook you actually use.

Let's see where deterministic enforcement holds — and where TriageCounsel correctly decides a lawyer should take over.

Policy before prompting.
Evidence before assertion.